

Sant Lal v. State of U.P. and 2 Others

High Court of Judicature at Allahabad · Division Bench · 8 May 2023 · 2023:AHC:98057-DB · Writ - C No. 15394 of 2023 · **Writ disposed; theft assessment to be finalized per Code**

HEADNOTE

Provisional assessment notice in an electricity-theft case, objection filed the same day and still undecided. Writ disposed with a direction to respondent no. 2 to finalize the assessment strictly in accordance with the procedure in the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Sant Lal was issued a notice of provisional assessment dated 24 February 2023 by respondent no. 2 in a case of theft of electricity. The notice granted fifteen days for an objection to the proposed assessment. Counsel stated that the objection was filed on the same day as the notice. When the writ was heard, the objection had not been decided and the assessment had not been finalized.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::8.5

finalization of theft assessment after objection

HOLDING

Where a provisional assessment notice in a theft case is challenged and the consumer's objection remains undecided, the writ is disposed by directing the assessing authority to finalize the assessment proceedings strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005. ¶ 1

PRINCIPLE TAGS

UP-2005::8.5 A writ against a provisional theft assessment, brought while the consumer's objection is still undecided, is closed by directing the assessing authority to finalize the proceedings under the Supply Code, without a finding on the notice or the proposed amount. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE THEFT ALLEGATION, THE PROVISIONAL ASSESSMENT DATED 24.02.2023, AND THE UNDECIDED OBJECTION

The Court left those questions to respondent no. 2 while finalizing the assessment under the Supply Code. ¶ 1